Credit Application and Credit Agreement

Company Information

Name of Business: Mullen Excavating Inc.		Tax I.D. Number 46-1590099
Type of Business: Excavation	In Business Since: 2013	Website: www.mullenexcavating.com
Legal Form Under Which Business Operates: Individual ☐ Sole Proprietorship ☐ LLC ☐ Partnership ☐ Corporation ☑ State of Incorporation Pennsylvania		
If Division/Subsidiary, Name of Parent Company:	In Business Since:	
Name of Company Principal Responsible for Business Transactions: Kevin Mullen	Title: President	
Address: 278 Green Valley Road	City: Eighty Four	State: PA ZIP: 15330
Email: kevin@mullenexcavating.com	Phone: 724-825-2002	
Gross Annual Sales: $5 Million	Net Annual Income: 1,000,000	Estimated Net Worth: 10 Million

Amount of Credit Requested $_____

**** IF CREDIT DESIRED IS GREATER THAN $10,000 – A COPY OF YOUR MOST RECENT FINANCIAL STATEMENT MUST ACCOMPANY THIS APPLICATION ****

Bank Reference

Financial Institution Name: PNC Bank	Phone: 724-942-1100
Checking Account #: 1031352185	Savings Account #:
Address: 278 Green Valley Road Eighty Four, Pa 15330	

Business References

Business Name:	Business Name:	Business Name:
Bullskin Lime & Stone, LLC	Cox Piping Supply	Bill Miller Equipment Sales
Contact Name:	Contact Name:	Contact Name:
Jody	Connie	Matt
Address:	Address:	Address:
986 Pleasant Valley Road Mt Pleasant, PA 15666	3126 Lento Blvd Bethel Park, PA 15102	10200 Parkersburg Road NW Eckhart Mines, MD 21528
Phone:	Phone:	Phone:
724-220-5771	412-831-8100	301-689-1013
Account Opened Since:	Account Opened Since:	Account Opened Since:
2014	2014	2025
Credit Limit:	Credit Limit:	Credit Limit:
$50,000	$50,000	$500,000
Current Balance:	Current Balance:	Current Balance:
$8,500	$15,000	$0.00

Authorization to Investigate. Upon receipt of this new Credit Application and Credit Agreement ("Agreement") and from time to time during the term of this Agreement as determined to be appropriate by Company, Applicant (identified above) and any CoApplicant applying for joint credit ("Co-Applicant") hereby authorize Fearless Leasing, LLC (hereinafter referred to as "Company") to contact the Financial Institution and Business References identified above to investigate the creditworthiness and financial responsibility of Applicant. Applicant, Co-Applicant and Guarantor(s) are hereinafter collectively referred to as "Applicant." Applicant authorizes Company to provide a copy of this Agreement to the Financial Institution and Business References identified above or to any consumer reporting agency at any time after Applicant's execution of this Agreement and at the sole discretion of Company.

Applicant authorizes and directs any person or consumer reporting agency to compile and furnish to Company any information it may have or obtain in response to such credit inquiries from Company, and Applicant agrees that such information and this Agreement are the property of Company whether or not credit is extended. Applicant shall provide copies of its financial statements to Company on an annual basis (when credit is more than $10,000). Applicant shall notify Company of any material change in Applicant's financial condition and any material changes in Applicant's ownership or business entity. Applicant shall be required to update the information contained in this Agreement upon request from Company.

Payment Terms. Invoice payment is due within 30 days. Late invoices will be assessed at 1% interest per month.

APPLICANT HEREBY KNOWINGLY AND VOLUNTARILY IRREVOCABLY WAIVES THE RIGHT TO TRIAL BY JURY IN ANY ACTION ARISING OUT OF OR BASED UPON THIS AGREEMENT OR THE COLLATERAL SECURING THIS AGREEMENT.

IMPORTANT: READ BEFORE SIGNING. THE TERMS OF THIS AGREEMENT SHOULD BE READ CAREFULLY BECAUSE ONLY THOSE TERMS IN WRITING ARE ENFORCEABLE, NO OTHER TERMS OR ORAL PROMISES NOT CONTAINED IN THIS AGREEMENT MAY BE LEGALLY ENFORCED. APPLICANT MAY CHANGE THE TERMS OF THIS AGREEMENT ONLY BY ANOTHER WRITTEN AGREEMENT. THIS NOTICE SHALL ALSO BE EFFECTIVE WITH RESPECTT TO ALL OTHER CREDIT AGREEMENTS NOW IN EFFECT BETWEEN APPLICANT AND COMPANY. A MODIFICATION OF ANY OTHER CREDIT AGREEMENTS NO IN EFFECT BETWEEN APPLICANT AND COMPANY, WHICH OCCURS AFTER RECEIPT BY APPLICANT OF THIS NOTICE MAY BE MADE ONLY BY ANOTHER WRITTEN INSTRUMENT. ORAL OR IMPLIED MODIFICATIONS TO SUCH CREDIT AGREEMENTS ARE NOT ENFORCEABLE AND SHOULD NOT BE RELIED UPON.

Signature of Applicant

September 4, 2026
Date

Signature of Co-Applicant

Date

Guaranty of Payment

For good and valuable consideration, the receipt and adequacy of which are hereby acknowledged, the undersigned, intending to be legally bound, hereby jointly and severally (if there is more than one guarantor) guarantees absolutely and unconditionally the prompt payment of any and all indebtedness of Applicant to Company now or hereinafter incurred.

Guarantor Signature

Guarantor Signature

278 Green Valley Road 15330
Address

Kevin Mullen
Printed Name

9/4/26
Date

Printed Name

Date